

SENATE No. 324

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting racially integrated schools.

PETITION OF:

NAME:

Brendan P. Crighton

DISTRICT/ADDRESS:

Third Essex

SENATE No. 324

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 324) of Brendan P. Crighton for legislation to promote racially integrated schools. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 252 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting racially integrated schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 69 of the General Laws is hereby amended by inserting after section 36 the
2 following sections:-

3 SECTION 37.

4 SCHOOL SEGREGATION DATA COLLECTION

5 (a) As used in this section, the following words shall have the following meanings:-

6 “Diverse school”, a school in which no single racial subgroup of students accounts for
7 more than 70 per cent of the total student population and at least 25 per cent of the student
8 population is White.

“Diverse district”, a school district in which no single racial subgroup of students accounts for more than 70 per cent of the total student population and at least 25 per cent of the student population is White.

“Intensely segregated district”, a school district in which (i) a single racial subgroup accounts for 90 per cent or more of the student population; or (ii) 10 per cent or less of the student population is White.

“Intensely segregated school”, a school in which (i) a single racial subgroup accounts for 90 per cent or more of the student population; or (ii) 10 per cent or less of the student population is White.

“Racially disproportionate school”, a school in which (i) the White student population differs by at least 15 percentage points as compared to the percentage of White students in the district which the school is a part of; or (ii) a school in which less than 25 per cent of the school population is White and the student population of a racial subgroup differs by at least 15 percentage points as compared to the percentage of said racial subgroup in the district of which the school is a part.

“Segregated district”, a school district that does not meet the criteria of either a diverse district or an intensely segregated district.

“Segregated school”, a school that does not meet the criteria of either a diverse school or intensely segregated school.

(b) Annually, the department of elementary and secondary education shall publicly report and place on its website the following information for all public schools and districts within the commonwealth:

(1) An identification of a public school as a: (i) diverse school; (ii) segregated school; or (iii) intensely segregated school.

(2) A quantifiable, comparable measure of school-level segregation used to determine the category of each school as specified in paragraph (1) of this subsection.

(3) An identification of a public school districts as a: (i) diverse district; (ii) segregated district; or (iii) intensely segregated district.

(4) A quantifiable, comparable measure of district-level segregation used to determine the category of each school as specified in paragraph (3) of this subsection.

(5) An identification of whether a school is a racially disproportionate school.

(6) A quantifiable, comparable measure of intradistrict segregation used to determine whether a school is a racially disproportionate school as specified in paragraph (5) of this subsection.

(7) A quantifiable, comparable measure to compare the proportionality of the racial composition of the total student population of a school or district as compared to the racial composition of students in said school or district that completed the SAT or ACT.

(8) A quantifiable, comparable measure to compare the proportionality of the racial composition of the total population of a school or district as compared to the racial composition of students enrolled in: (i) not less than 1 advanced placement course; (ii) a chemistry course;

(iii) a biology course; (iv) a geometry course; (v) a calculus course; (vi) an eighth grade algebra course; (vii) an advanced math course; (viii) a gifted and talented program; and (ix) if applicable, a designated early college pathway.

(c) The department of elementary and secondary education may establish reasonable limits on public reporting of data for the sole purposes of (i) protecting the identities of individual students or (ii) to maintain the statistical integrity of data, provided that such limits are consistent with the existing policies and procedures of the department.

SECTION 38.

SCHOOL INTEGRATION GRANT PROGRAM

The department of elementary and secondary education shall establish a grant program, subject to appropriation, to be known as the school diversity and integration grant program for the development, implementation, and evaluation of comprehensive strategies in school districts to combat the effects of racial segregation by increasing racial diversity of the student population.

(a) As used in this section, the following words shall have the following meanings:-

“Eligible entity”, a public school district or consortium of public school districts in a region that at the time of the application has significant achievement gaps or racial segregation within or between the school districts served by such entity.

(b) The department of elementary and secondary education may reserve up to 10 per cent of appropriated funds for (i) research, development, data collection, monitoring, technical assistance, evaluation, or dissemination activities; (ii) the development and dissemination of best

practices to increase racial diversity in schools; and (iii) in the case in which a grantee uses race as a factor in developing a process for achieving racially integrated schools, technical assistance to grantees to develop narrowly tailored plans to achieve the benefits of racial diversity.

(c) The department shall award grants on a competitive basis to eligible entities to develop or implement plans to improve student diversity and reduce or eliminate racial segregation. The department may, in any fiscal year, award: (i) planning grants; (ii) implementation grants; or (iii) both planning and implementation grants.

(1) A planning grant awarded under this section shall be for a period of not more than 1 year.

(2) Each eligible entity that receives a planning grant shall use the grant to support students in schools through the following activities: (i) completing a comprehensive assessment of, with respect to the geographic area served, (A) the educational outcomes and racial segregation of children attending schools; (B) an analysis of the location and capacity of program and school facilities and the adequacy of local or regional transportation infrastructure; and (C) an analysis of whether the local housing stock is adequately diverse and whether local land-use and zoning practices allow for racial diversity; (ii) developing and implementing a robust family, student, and community engagement plan, including public hearings or other open forums that would precede and inform the development of a formal strategy to improve diversity in schools; provided, however, that such engagement shall include meaningful engagement of students and families of color; (iii) developing options, including timelines and cost estimates, for improving diversity in schools, such as weighted lotteries, revised feeder patterns, school boundary redesign, or regional coordination; (iv) developing an implementation plan based on community

92 preferences among the options developed; (v) building the capacity to collect and analyze data
93 that provide information for transparency, continuous improvement, and evaluation; (vi)
94 developing plans for creating a racially inclusive school climate with respect to racially and
95 culturally curriculum, school discipline policies and practices, and teacher and school leader
96 diversity; (vii) if applicable, developing an implementation plan to comply with a court-ordered
97 school desegregation plan; and (viii) if applicable, developing an implementation plan to replace
98 entrance exams or other competitive application procedures with alternate methods of student
99 assignment to promote racial diversity.

100 (3) An implementation grant awarded under this section shall be for a period of not more
101 than 3 years, except that the department may extend an implementation grant for an additional 2-
102 year period if the eligible entity receiving the grant demonstrates to the department that the
103 eligible entity is making significant progress, as determined by the department, on the program
104 performance measures described in subsection (g).

105 (4) Each eligible entity that receives an implementation grant shall implement a high-
106 quality plan to support students in schools that includes: (i) a comprehensive set of strategies
107 designed to improve academic outcomes for all students, particularly students of color, by
108 increasing student diversity; (ii) evidence of strong family and community support for such
109 strategies, including evidence that the eligible entity has engaged in meaningful family and
110 community outreach activities with students and families of color; (iii) goals to increase student
111 diversity; (iv) collection and analysis of data to provide transparency and support continuous
112 improvement; and (v) a rigorous method of evaluation of the effectiveness of the program.

(5) Each eligible entity that receives an implementation grant may use the grant to carry out one or more of the following activities: (i) recruiting, hiring, or training additional teachers, administrators, school counselors, and other instructional and support staff in new, expanded, or restructured schools, or other professional development activities for staff and administrators; provided, however, that the hiring of such individuals directly relate to the implementation of a school integration program under this section; (ii) investing in specialized academic programs or facilities designed to encourage inter-district school attendance patterns; (iii) developing or initiating a transportation plan for bringing students to and from schools; (iv) developing innovative and equitable school assignment plans; (v) carrying out innovative activities designed to increase racial diversity and engagement between children from different racial backgrounds; (vi) creating or improving systems and partnerships to create an enrollment process for students with multiple public school options, including making school information and data more accessible and easy to understand, in order to ensure access to high-quality schools for students of color and to promote racial diversity; or (vii) carrying out plans to improve access to a rigorous curriculum for all students through the elimination of tracking or ability grouping students in class assignment.

(d) The department shall award grants based on: (i) the quality of the application submitted by an eligible entity; (ii) the likelihood, as determined by the department, that the eligible entity will use the grant to improving academic and other developmental or noncognitive outcomes for students; and (iii) the likelihood that the grant will lead to a meaningful reduction in racial segregation for students.

(e) In awarding grants under this section, the department shall give priority to the following eligible entities: (i) first, to an eligible entity that proposes to use the grant to support a

program that extends beyond one school district, such as an inter-district or regional program;
and (ii) second, to an eligible entity that demonstrates meaningful coordination with local or
regional housing or transportation agencies.

(f) In order to receive a grant, an eligible entity shall submit an application to the
department at such time and in such manner as the department may require. Such application
shall include: (i) a description of the program for which the eligible entity is seeking a grant,
including: (A) how the eligible entity proposes to use the grant to improve the academic and life
outcomes of students in racially segregated schools by supporting interventions that increase
diversity for students in such schools; (B) in the case of an implementation grant, the
implementation grant plan described in paragraph (4) of subsection (c); and (C) evidence, or if
such evidence is not available, a rationale based on current research, regarding how the program
will increase diversity; (ii) how the eligible entity will identify and define racial segregation and
racial diversity; (iii) a description of the plan of the eligible entity for continuing the program
after the grant period ends; (iv) a description of how the eligible entity will assess, monitor, and
evaluate the impact of the activities funded under the grant on student achievement and student
enrollment diversity; (v) an assurance that the eligible entity has conducted, or will conduct,
robust family and community engagement, provided that engagement: (A) shall be in a language
that families and students can understand; (B) shall include engagement with students and
families of color in the targeted district or region; and (C); shall be designed to remove barriers
to ensure participation of students and families in the planning and development of any formal
strategy to increase diversity; (vi) an estimate of the number of students that the eligible entity
plans to serve under the program and the number of students to be served through additional
expansion of the program after the grant period ends; (vii) an assurance that the eligible entity

will: (A) cooperate with the department in evaluating the program; and (B) engage in a community of practice as described in subsection (i); (ix) in the case of an eligible entity applying for an implementation grant, a description of how the eligible entity will implement, replicate, or expand a strategy based on an appropriate level of evidence, as determined by the department, or test a promising strategy to increase diversity in schools; (x) in the case of an application by a consortium of local educational agencies, how the grant funds will be divided among the school districts served by such consortium.

(g) The department shall establish performance measures for the programs and activities carried out through grants. These measures shall track the progress of each eligible entity in (i) increasing diversity and decreasing racial segregation in schools; and (ii) improving academic and other developmental or noncognitive outcomes for each racial subgroup of students that the department or eligible entity may identify.

(h) The department may establish annual reporting requirements of grantees as it deems appropriate for the implementation of this section.

(i) The department shall establish a professional learning community, which shall consist of grantees and staff that the department may reasonably furnish for technical assistance in developing strategies related to the purposes of this grant program.

(1) The professional learning community shall meet regularly to promote the development of shared best practices for the planning and implementation of grants under this section.